IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT – IV

ITEM No. 420
CP(CAA-48/ND/2021

IN THE MATTER OF:

Casper Consumer Electronics Pvt. Ltd.	...	Applicant
And		
Wellington Transportation Pvt. Ltd.	...	Respondent

Order under Section 230-232.

Order delivered on 15.03.2022

Coram:
MR. DHARMINDER SINGH
HON'BLE MEMBER (JUDICIAL)
MS. SUMITA PURKAYASTHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Ms. Ranjana Roy Gawai, Mr. Arun Saxena, Ms. Nalini Mr. Pervinder Tanwar and Mr. Shikher Upadhyay Advs.
For the RD	: Ms. Shankari Mishra, Adv.
For the OL	: Ms. Hemlata Rawat

ORDER

Learned Counsel for the respondent-Statutory Authorities stated that they are examining the report filed by SFIO. However, on queries, the Ld. Counsel is not able to show that report to us and stated that it is being examined by Official Liquidator. But once the counsel is appearing, he is supposed to place the same on record and to show whenever so demanded by this Tribunal. Unnecessary adjournments are being sought. Even on, the last date of hearing, Ld. Counsel for the Statutory Authorities were directed to file the report on or before the next date of, failing which, the right would stand closed. Today, the same position is there. Therefore, in view of the previous order, no further adjournments can be given. Accordingly, the right to file report/reply stands closed. It is also made clear that order should be placed before the senior officer of the Income Tax Department and Official Liquidator, for examining, the concerned officers are reluctant to file the reply/report for years together as the departments were served way back on 06.04.2021 but report/reply till date are not filed.

Let the mater be fixed for arguments on 18.04.2022.

- Sd -

SUMITA PURKAYASTHA
MEMBER (TECHNICAL)

- Sd -

DHARMINDER SINGH
MEMBER (JUDICIAL)

MUKESH